

28. GSR No.869 dated the 21st November, 1987
29. GSR No.420 dated the 21st May, 1988
30. GSR No.739 dated the 17th September, 1988
31. GSR No.850 dated the 11th November, 1989
32. GSR No.900 dated the 2nd December, 1989
33. GSR No.734 dated the 8th December, 1990
34. GSR No.723 dated the 1st December, 1990
35. Notification No.E(D&A) 91 RG 6-42 dated the 8th June, 1991
36. GSR No.568 dated the 5th October, 1991
37. GSR No.86 dated the 22nd February, 1992
38. GSR No.504 dated the 14th November, 1989
39. Notification No.E(D&A) 92 RG 6-148 dated the 9th November, 1992
40. GSR No.63 dated the 30th January, 1993
41. GSR No.327 dated the 16th July, 1994
42. GSR No.106 dated the 6th June, 1998
43. GSR No.422 dated the 27th December, 1997
44. GSR No.87 dated the 20th March, 1999
45. GSR No.385 dated the 20th November, 1999
46. GSR No.617 dated the 24th November, 2001
47. GSR No.342 dated the 24th August, 2002
48. GSR No.50 dated the 1st February, 2003
49. GSR No.134 dated the 29th March, 2003
50. GSR No.376 dated the 30th October, 2004
51. GSR No.62 dated the 19th February, 2005
52. GSR No.195 dated the 11th June, 2005
53. GSR No.226 dated the 9th July, 2005
54. GSR No.190 dated the 29th July, 2006.

2. **Definitions** -

(1) In these rules, unless the context otherwise requires -

(a) 'appointing authority' in relation to a Railway servant means -

- (i) the authority empowered to make appointments to the Service of which the Railway servant is, for the time being, a member or to the grade of the Service in which the Railway servant is, for the time being, included, or
- (ii) the authority empowered to make appointments to the post which the Railway servant, for the time being holds, or
- (iii) the authority which appointed the Railway servant to such Service, grade or post, as the case may be, or
- (iv) where the Railway servant having been a permanent member of any other Service or having substantively held any other permanent post, has been in continuous employment under the Ministry of Railways, the authority which appointed him to that Service or to any grade in that Service or to that post;

whichever authority is the highest authority.

- (b) 'Commission' means the Union Public Service Commission,
- (c) 'disciplinary authority' means -
 - (i) in relation to the imposition of a penalty on a Railway servant, the authority competent, under these rules, to impose on him that penalty;
 - (ii) in relation to Rule 9 and clauses (a) and (b) of sub-rule (1) of Rule 11 in the case of any gazetted Railway servant, an authority competent to impose any of the penalties specified in Rule 6;
 - (iii) in relation to Rule 9 in the case of any non-gazetted Railway servant, an authority competent to impose any of the major penalties specified in Rule 6;
 - (iv) in relation to clauses (a) and (b) of sub-rule (1) of Rule 11, in the case of a non-gazetted Railway servant, an authority competent to impose any of the penalties specified in Rule 6.
- (d) 'head of the department' for the purpose of exercising the powers as appointing, disciplinary, appellate or revising authority, means the authority declared to be head of the department in terms of clause (21) of Rule 103 of Volume I of the Indian Railway Establishment Code (Fifth Edition-1985);
- (e) 'Railway servant' means a Railway servant as defined in clause 43 of Rule 103 of Volume I of the Indian Railway Establishment Code (Fifth Edition-1985) and includes any such Railway servant on foreign service or whose services are temporarily placed at the disposal of any other department of the Central Government or a State Government or a local or other authority;
- (f) 'Service' means a service under the Ministry of Railways;
- (g) 'Schedule' means a schedule appended to these rules.

(2) All other words and expressions used but not defined in these rules and defined in the Indian Railways Act, 1890 (9 of 1890) shall have the meanings respectively assigned to them under that Act.

3. **Application** - (1) These rules shall apply to every Railway servant but shall not apply to -

- (a) any member of the All India Services;
- (b) any member of the Railway Protection Force as defined in the Railway Protection Force Act, 1957 (23 of 1957);
- (c) any person in casual employment; and
- (d) any person for whom special provision is made, in respect of matters covered by these rules by or under any law for the time being in force or by or under any agreement entered into by or with the previous approval of the President before or after the commencement of these rules, in regard to matters covered by such special provisions.

(2) Notwithstanding anything contained in sub-rule (1), the President may, by order, exclude any class of Railway servants from the operation of all or any of these rules.